

		On 1/24/25, the Court denied Plaintiff's Motion to vacate, set aside or reconsider the court's June 28, 2024, order granting Defendant Dennis J. Buchanan, M.D.'s motion for summary judgment on the Second Amended Complaint. (ROA 172.) The Court then denied Plaintiff's Motion to vacate the judgment on 1/23/26. (ROA 186.) The Motion is procedurally improper and lacks any legal authority. (See Rules of Court, Rule 3.1112; <i>Luri v. Greenwald</i> (2003) 107 Cal.App.4th 1119, 1126.) In this motion, Plaintiff asks for the court to consider her "special circumstances" in vacating the judgment or order (as it is not clear) and allowing the case to proceed. Her declaration in support of this motion, however, identifies no such circumstances. Thus, this motion is denied. Defendant is ordered to serve notice of this order.
56	<i>Mondello v. Ford Motor Company</i>	Defendant Ford Motor Company moves to compel the deposition of Plaintiff Paul Mondello. Pursuant to the parties' briefing, the deposition is scheduled to occur on 7/16/26, the day before this hearing. (Smith Decl., ¶¶ 5-9.) If the deposition does not occur as it has been noticed, the Court will grant Defendant's motion and order that the deposition occur within 30 days of this ruling.

		Irrespective of whether the deposition goes forward on 7/16/26, the Court finds that sanctions are in order. Code Civ. Proc., § 2025.450(g)(1) provides that “the court shall impose a monetary sanction... in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Here, Defendant has shown that it has been attempting to take Plaintiff’s deposition for over a year, noticing it on at least four separate occasions. (Pisciotta Decl., ¶¶ 3-10.) Each time Defendant noticed Plaintiff’s deposition, it requested Plaintiff’s alternative availability. It was not until after the third time the deposition was noticed that Plaintiff’s counsel provided his availability. (<i>Id.</i>) However, after the parties both agreed on a date – 2/27/26 – Plaintiff cancelled it. After Defendant filed this motion, Plaintiff then agreed to hold the deposition on 7/16/26. (Smith Decl., ¶¶ 5-9.) Accordingly, Defendant’s request for sanctions in the amount of \$560.00 against Plaintiff and/or his counsel is granted, and is to be paid within 30 days of this ruling. Defendant shall give notice.
57	<i>Neach vs. Pacheco</i>	The motion by Defendant/Cross-Complainant Rodric Anthony Pacheco (“Pacheco”) and Defendant Pacheco & Neach, PC (“Law Firm”)